

25CV01283 Cecily Macgregor vs Raymond Anthony T De Guzman et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-27

Motion: 1. Motions to Compel (4); 2. Motions to Quash (4)

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Tentative Ruling: Cecily Macgregor vs Raymond Anthony T De Guzman et al

Case Number

25CV01283

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/27/2026 - 10:00

Nature of Proceedings

1. Motions to Compel (4); 2. Motions to Quash (4)

Tentative Ruling

Cecily Macgregor v. Raymond Guzman, et al.

Case No. 25CV01283

Hearing Date: July 27, 2026

HEARING: 1. Defendants' Motion to Compel Further Responses to Form Interrogatories - General; Request for Monetary Sanctions

2. Defendants' Motion to Compel Further Responses to Form Interrogatories - Employment; Request for Monetary Sanctions

3. Defendants' Motion to Compel Further Responses to Special Interrogatories; Request for Monetary Sanctions
4. Defendants' Motion to Compel Further Responses to Requests for Production; Request for Monetary Sanctions
5. Plaintiff's Motion to Quash Subpoena Issued to A Prime Home Care Services, Inc.; Request for Expenses and Attorneys' Fees.
6. Plaintiff's Motion to Quash Subpoena Issued to UCLA Health; Request for Expenses and Attorneys' Fees.
7. Plaintiff's Motion to Quash Subpoena Issued to Family Therapy Institute of Santa Barbara; Request for Expenses and Attorneys' Fees.
8. Plaintiff's Motion to Quash Subpoena Issued to Sutter Health; Request for Expenses and Attorneys' Fees.

ATTORNEYS: For Plaintiff and Cross-Defendant Cecily Macgregor: Farhad Novian, Alexander Kandel, Jennifer Weiner, Novian & Novian LLP

For Defendants Raymond Anthony T. De Guzman and De Guzman Corporation dba 1Heart Caregiver Services and Cross-Complainant De Guzman Corporation: Thomas B. Song, Buchalter LLP

TENTATIVE RULING:

The motions are continued to August 31, 2026, in Department 5 at 10:00 a.m. The parties shall file a joint status report, or individual status reports, with a concise description of the discovery issues resolved and those that continue to be in dispute, if any, no later than August 10, 2026.

Background/Analysis:

This action was commenced on February 28, 2025, by the filing of the complaint by plaintiff Cecily Macgregor ("Macgregor") against defendants Raymond Anthony T. De Guzman ("De Guzman") and De Guzman Corporation dba 1Heart Caregiver Services ("1Heart") (collectively "defendants") for: (1) Age Discrimination, (2) Disability Discrimination, (3) Failure to Accommodate, (4) Failure to Engage in the Interactive Process, (5) Retaliation in Violation of FEHA, (6) Retaliation in Violation of Labor Code section 1102.5, (7) Retaliation in Violation of Health & Safety Code section 1278.5, (8) Failure to Prevent Harassment, Discrimination, and Retaliation, (9) Wrongful Termination in Violation of Public Policy, (10) Failure to Pay Minimum Wage, (11) Failure to Pay Wages Earned and Overtime Compensation, (12) Waiting Time Penalties for Failure to Pay Wages, (13) Failure to Reimburse Business Expenses, (14) Failure to Provide Meal/Rest Breaks, and (15) Unfair Competition.

As alleged in the complaint:

Macgregor began working for 1Heart on January 18, 2021, when she was 66 years old. (Compl., ¶¶ 14, 15.) According to her offer letter, dated January 14, 2021, Macgregor was to be paid \$4,500 base salary, plus commission and reimbursements for several job expenses. (Compl., ¶ 16.)

Macgregor's responsibilities included marketing and visiting patients' homes to provide and organize care for them, and she was also required to be in the office at least every Monday for a marketing plan and schedule meeting. (Compl., ¶ 18.)

During her employment with 1Heart, Macgregor regularly worked more than eight hours per workday but received no overtime pay. (Compl., ¶ 19.) Macgregor was not provided with uninterrupted duty-free meal or rest periods and was not paid for the missed meal or rest periods. (Compl., ¶ 20.) Macgregor regularly incurred business expenses in the course of her employment but was never reimbursed for said expenses. (Compl., ¶ 21.) Macgregor earned but was never paid commissions during her employment with 1Heart. (Compl., ¶ 22.)

Macgregor suffered from disabilities, including chronic migraines and vertigo, during her employment with 1Heart, which made it difficult for her to perform the essential functions of her job, including driving long distances. (Compl., ¶ 23.)

On January 20, 2022, Macgregor informed De Guzman of her disabilities and requested reasonable accommodation, but, in response, De Guzman summarily denied the request, commenting that his mother also suffers from migraines and that it is just a part of the aging process. (Compl., ¶ 24.) De Guzman also implied that Macgregor would be terminated soon by stating that 1Heart could not have her driving if she was experiencing vertigo and recommended that Macgregor consider moving. (Ibid.) Macgregor also suffered from dyslexia, for which she was never provided any reasonable accommodation. (Compl., ¶ 25.) Later in 2022, De Guzman approached Macgregor to let her know that he and his wife had been thinking about whether Macgregor ever felt tired at work and, when Macgregor honestly responded that she occasionally did feel tired, De Guzman replied by stating that he was looking for "younger blood" to bring into the company. (Compl., ¶ 26.)

In December 2022, defendants hired a less skilled, less experienced, but younger employee for a sales position that overlapped with that of Macgregor. (Compl., ¶ 27.) In 2023, Macgregor's monthly salary was reduced to \$4,090.90, despite 1Heart's growth and profitability. (Compl., ¶ 28.)

During her employment with 1Heart, Macgregor complained to defendants that medically fragile clients were not assigned care managers with the experience and licensure required to care for them, and that 1Heart's lack of due diligence had injured a patient. (Compl., ¶ 30.) The complaints were met with yelling, ridicule, and increased scrutiny paired with baseless criticisms. (Ibid.)

1Heart officially terminated Macgregor on March 2, 2023. (Compl., ¶ 31.)

On April 16, 2025, defendants answered the complaint with a general denial and 50 affirmative defenses.

On April 15, 2025, 1Heart filed a cross-complaint against Macgregor for conversion of personal property and damages. 1Heart alleges Macgregor used a company credit card, which was only supposed to be used for legitimate business purposes, for personal things such as groceries, pharmacy purchases, personal meals at restaurants, and various purchases of supplies that were not approved for purchase by 1Heart.

On May 20, 2025, Macgregor answered the cross-complaint with a general denial and 41 affirmative defenses.

On December 29, 2025, 1Heart filed: (1) Motion to Compel Further Responses to Form Interrogatories - General; Request for Monetary Sanctions, (2) Motion to Compel Further Responses to Form Interrogatories - Employment; Request for Monetary Sanctions, (3) Motion to Compel Further Responses to Special Interrogatories; Request for Monetary Sanctions, and (4) Motion to Compel Further Responses to Requests for Production; Request for Monetary Sanctions.

No oppositions to any of the motions have been filed.

On February 11, 2026, Macgregor filed a Motion to Quash, Limit, or Modify Deposition Subpoena to A Prime Home Care, Inc.; Request for Expenses and Attorneys' Fees. On February 13, 2026, Macgregor filed: (1) Motion to Quash, Limit, or Modify Deposition Subpoena to UCLA Health; Request for Expenses and Attorneys' Fees, and (2) Motion to Quash, Limit, or Modify Deposition Subpoena to The Family Therapy Institute of Santa Barbara; Request for Expenses and Attorneys' Fees. On February 18, 2026, Macgregor filed a Motion to Quash, Limit, or Modify Deposition Subpoena to Sutter Health; Request for Expenses and Attorneys' Fees.

No oppositions to any of the motions have been filed.

On April 17, 2026, the parties filed a joint stipulation to continue the hearing date for all of the discovery motions, and the hearings were continued to June 1, 2026.

On April 28, 2026, the parties again filed a stipulation to continue the hearings, which resulted in a new hearing date of July 27, 2026. Numerous reasons were given for the request to continue the hearings, as well as the trial date, including that the parties had agreed to participate in mediation. With regard to the discovery motions, the parties represented that there were several agreements regarding each of the present motions.

Following the filing of the stipulation to continue the trial date and discovery motions in April, the parties have not filed any documents informing the court of the status of the discovery disputes. The only document that has been filed is a substitution of attorney for defendants. As such, the court has no information regarding the current status of the disputes.

The parties will be ordered to provide the court with either a joint, or individual, status update to inform the court whether the motions are moot or if the issues have been narrowed. The status update should be concise and simply address the extent to which the issues have been resolved or narrowed. The status updates are not to be used to present legal argument, as the time to present legal argument has passed.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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